

		CA2d 67, 72, 1 CR 49, 53.] Furthermore, by defaulting, defendant is deemed to <i>admit</i> the material allegations of the complaint for purposes of the action. [See <i>Vasey v. California Dance Co., Inc.</i> (1977) 70 CA3d 742, 749, 139 CR 72, 76.] <u>MOTION TO VACATE DEFAULT</u> Motion is CONTINUED to October 22, 2026 at 1:30 pm in C34, for service of the motion to vacate on Defendant Elaine Muthoni Chegge. Proof of service of the motion to vacate on Defendant Elaine Muthoni Chegge must be filed with the court at least 7 days before the 10/22/26 hearing. Clerk to give notice as to all motions.
14.	30-2024-01411685 Bakr vs. In Motion O.C.	1. Motion for Judgment Not Withstanding the Verdict 2. Motion for New Trial *No tentative Ruling.
15.	30-2025-01485696 Durbin vs. General Motors, LLC	1. Motion for Summary Judgment and/or Adjudication Defendant General Motors, LLC (“Defendant” or “GM”) moves for summary judgment or summary adjudication of the causes of action for breach of express and implied warranties set forth in the Complaint of plaintiffs Anthony Durbin and Lesley-Ann Durbin (together, “Plaintiffs”). Plaintiffs’ evidentiary objections are OVERRULED. <u>Standing</u> Anthony leased the subject vehicle on September 29, 2020. When the lease ended, Plaintiffs jointly purchased the vehicle from Anaheim HY LLC in 2024. They assert two causes of action for breach of implied and express warranties under the Song-Beverly Act (SBA) based on the 2020 lease agreement. (Compl. ¶¶ 5-12.) GM argues that Lesley-Ann does not have standing under the 2020 lease agreement because she was not listed as a lessee and Plaintiffs have not brought their claims under the 2024 purchase contract. Plaintiffs argue Lesley-Ann has standing under the sales contract, which lists her as the buyer and Anthony as the co-buyer. However, the Complaint alleges claims based only on the 2020 lease. The Complaint makes no reference to the 2024 purchase of the vehicle. The pleadings frame the issues in a summary judgment motion. (<i>Hutton v. Fidelity National Title Co.</i> (2013) 213 Cal.App.4th 486, 493.) Because the Complaint is based only on the 2020 lease and Lesley-Ann was not a party to the lease, Lesley-Ann’s claims against GM fail as a matter of law. Thus, GM’s Motion for Summary Adjudication is GRANTED as to Lesley-Ann’s claims. <u>Breach of Express Warranty</u> GM argues Anthony cannot establish breach of an express warranty under the September 2020 lease because Anthony cannot show substantial impairment to the use, value, or safety during the lease. GM argues that Anthony derived the benefit of the bargain under the lease by driving the vehicle for more than the contracted-for limit under the lease and any argument that he felt unsafe in the vehicle is belied by the fact that he chose to purchase the vehicle when the lease was up. GM further argues

Anthony failed to mitigate any damages. Lastly, GM also argues that this claim fails because Plaintiffs did not purchase a “new motor vehicle” for purposes of the SBA, as the vehicle was used at the time of the 2024 purchase.

GM’s argument that Anthony cannot show any substantial impairment to the use, value, or safety of the vehicle during the lease because he chose to purchase the vehicle after the lease expired is a question of fact. The mere fact that Anthony chose to purchase the vehicle does not establish as a matter of law that he could not have experienced impairment to the use, value, or safety of the vehicle during the lease. Thus, GM has failed to carry its burden as the moving party. Moreover, Anthony testified that he experienced issues with the screen going black and it caused him a lot of fear while driving the vehicle. Whether this issue constituted substantial impairment is a question of fact. (*Schreidel v. American Honda Motor Co.* (1995) 34 Cal.App.4th 1242, 1250 [“issue of . . . substantial impairment is one for the trier of fact.”].)

The question of whether Anthony acted reasonably or failed to mitigate any damages is also a question for the trier of fact. (*Agam v. Gavra* (2015) 236 Cal.App.4th 91, 111.) Further, it is GM’s burden as the defendant to prove any failure to mitigate. (*Ibid.*) GM has offered no evidence in support of its failure to mitigate argument.

As to whether the vehicle was not a “new” vehicle for purposes of the SBA at the time of Plaintiffs’ purchase, the Court need not address the argument given that the cause of action is not based on the sales contract.

In light of the above, the Court finds that **GM is not entitled to summary adjudication as to the second cause of action for breach of express warranty**. Thus, the Motion for Summary Adjudication as to the breach of express warranty cause of action asserted by Anthony is **DENIED**.

Breach of Implied Warranty

GM argues this claim fails because Anthony did not take the vehicle to a GM-authorized dealership at all for repairs during the one-year implied warranty period, Anthony never revoked acceptance, and there is no evidence of any diminished value that could support a claim for damages. GM further contends that implied warranties under the SBA do not apply to manufacturers with respect to the sale of used goods.

GM’s contention that the vehicle was never presented for repairs during the one-year implied warranty period is false. Evidence submitted by Plaintiffs shows the vehicle was presented to Tustin Cadillac on September 29, 2020, April 26, 2021, and May 18, 2021.

As to revocation, “continued use of a motorized vehicle does not, as a matter of law, prevent the buyer from asserting rescission (or its UCC equivalent, revocation of acceptance).” (*Ibrahim v. Ford Motor Co.* (1989) 214 Cal.App.2d 878, 897; see also *Isip v. Mercedes-Benz USA, LLC* (2007) 155 Cal.App.4th 19, 27 [rejecting the notion that merely because a vehicle provides transportation from point A to point B, the implied warranty of merchantability was not violated].) Further, GM’s contention that Plaintiffs have no evidence of their damages or the diminished value of the vehicle is not supported by any evidence submitted with the moving papers. As Plaintiffs point out, GM has failed to point to any discovery responses, deposition testimony, or an undisputed fact in support of this argument. Thus, GM has failed to carry its burden as the moving party.

As with the express warranty claim, the Court need not address whether the vehicle was not a “new” vehicle for purposes of the SBA when Plaintiffs purchased the vehicle because the cause of action is not based on the sales contract.

		In light of the above, the Court concludes that GM is not entitled to summary adjudication as to the first cause of action for breach of the implied warranty. Thus, the Motion for Summary Adjudication as to the breach of implied warranty cause of action asserted by Anthony is DENIED.
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Moving party to give notice.